

Deep Mohan Agarwal v. District Magistrate, G.B. Nagar

High Court of Judicature at Allahabad · Division Bench · 9 May 2016 · WRIT - C No. - 20718 of 2016 · **Writ disposed; clause 4.4 application to be decided in 15 days.**

HEADNOTE

A writ seeking independent supply after disconnection in a fraternal occupancy dispute was disposed of without deciding entitlement. The Court pointed to clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005 (indemnity bond by a non-owner intending consumer) and directed Paschimanchal Vidyut Vitaran Nigam Limited to examine any prescribed-form application in accordance with law, preferably within 15 days after hearing the co-occupant brother, and to provide the connection if the petitioner is found entitled. The impugned order is to abide by that decision.

FACTUAL SUMMARY

The petitioner and respondent No. 4 are brothers, sons of Late Sheetal Prasad. After their father's death on 24 September 2002 they disputed inherited properties. The petitioner claimed to reside on the first floor of a house in Sector 56, NOIDA, and respondent No. 4 on the ground floor. Electricity to the petitioner's portion had been cut off. He alleged disconnection by the Power Corporation at his brother's instance; the Corporation said the brother had disconnected the supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

independent connection for non-owner occupant on indemnity bond

HOLDING

Where supply has been cut off amid a dispute between co-occupants and the intending consumer is not the owner, the writ court will not decide disconnection or entitlement on merits. The occupant may apply in the prescribed form for an independent connection under clause 4.4 of the 2005 Code (indemnity bond by a non-owner intending consumer); the distribution licensee shall examine the application in accordance with law, decide preferably within 15 days after hearing the parties including the co-occupant, and provide the connection expeditiously if entitlement is found. The impugned order shall abide by that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POWER CORPORATION OR THE PETITIONER'S BROTHER DISCONNECTED THE SUPPLY

The Court expressly declined to enter that controversy. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED ON MERITS TO AN INDEPENDENT CONNECTION UNDER CLAUSE 4.4

Left to the licensee to examine in accordance with law after hearing the parties. ¶ 1